REPORT OF CONDUCT AFFECTING COMPETITION

Australian physical weed-control technology: alleged supplier disparagement, gatekeeper influence and possible foreclosure of a competing laser-weeding platform

To	Australian Competition and Consumer Commission
From	Christopher W. Laudando, President & Founder, Laudando & Associates LLC
Date	2 September 2026
Submission channel	ACCC online “Report an issue affecting your business or franchise” form
Status	Information report – not a request for private dispute resolution

Core request: Please assess whether conduct within an influential Australian AgTech adoption and validation network has distorted competition on the merits or involved misleading safety representations. L&A does not presently assert that any named party has contravened the Competition and Consumer Act; it asks the ACCC to examine evidence and communications that L&A cannot compel.

Summary

A U.S. AgTech small business alleges that a representative of an influential industry intermediary made an extreme unsupported safety statement about its competing laser-weeding product directly to Australian grower prospects at a publicly supported Queensland showcase. The intermediary publicly promotes another laser-weeding supplier and is now embedded in the network supporting a levy-funded project intended to independently identify and validate physical weed-control technologies. Separate patent litigation has resulted in the complainant’s withdrawal and loss of hardware from the Australian market without an Australian merits judgment identified by the complainant. I ask the ACCC to assess possible misleading conduct and whether communications, arrangements or gatekeeper practices have materially reduced competition and grower choice in a nascent market.

1. Reporter

- Christopher W. Laudando, President and Founder, Laudando & Associates LLC, Chico, California, USA.
- Contact: chris@laudando.com.

- L&A is a small engineering and AgTech company and the developer of L&Aser, a differentiated photonic physical weed-control platform.
- L&A supplied/demonstrated technology and pursued customers, integrators and trials in Australia; the conduct reported therefore affected an actual or prospective participant in Australian commerce.

2. Businesses and organisations relevant to the report

Entity	Public/market role	Reason included
Western Growers Association	California grower organisation and AgTech commercialization intermediary; Australian project partner/network provider.	Alleged Gatton representation; public Carbon promotion; potential influence over supplier access and perceptions.
Carbon Autonomous Robotic Systems Inc. / Carbon Robotics	Laser-weeding supplier and L&A competitor.	Public beneficiary of WGA case-study promotion; plaintiff in patent litigation. Litigation is context, not alleged unlawful by itself.
Horticulture Innovation Australia Ltd	Grower-owned RDC investing levies and Commonwealth contributions.	Funds/commissions relevant programs and represents MT25014 as independent.
Queensland DPI	Government delivery lead and operator of Gatton Smart Farm.	Controls or administers official program access, partner roles and validation processes.
Reservoir Farms / Cornell University / AUSVEG	Named or associated project/network participants.	Potential holders of relevant communications; no wrongdoing alleged on current information.

3. Conduct reported

3.1 Direct product-safety representation to prospective customers

At the 15–16 October 2025 Gatton AgTech Showcase, L&A alleges that Western Growers' Senior Commercialization Director, Ben Palone, entered L&A's booth and told Australian grower prospects that L&Aser could "blind a bus full of kids." Direct witnesses can address the exact words, audience and effect. L&A is not aware of any inspection or technical analysis supporting the representation. A statement about catastrophic safety risk, made in a commercial adoption setting by an apparent

industry expert or intermediary, is capable of causing growers to abandon trials or purchases irrespective of technical merit.

3.2 Differential vendor positioning

Western Growers publicly created and hosts a case study promoting Carbon Robotics' laser-weeding economics and outcomes. In an August 2026 AUSVEG podcast, Western Growers representatives discussed Carbon favorably and acknowledged that additional laser-weeding competition would improve cost competitiveness. Neither activity is unlawful by itself. The competition concern arises from the combination of favorable positioning of one supplier, alleged unsupported disparagement of another, and a subsequent role in the institutional network that identifies and validates technologies for Australian growers.

3.3 Gatekeeper position in a nascent validation channel

Queensland DPI describes Western Growers as providing an extensive global network of AgTech manufacturers. The Queensland Government names Western Growers as a partner in MT25014, a three-year levy-funded project intended to validate laser, electrical and mechanical weed-control systems. Tender material describes a structured gateway that independently benchmarks a defined portfolio and enables objective comparison. The identity of the suppliers admitted to the portfolio, and the information communicated to growers about them, may materially shape demand in a young market with few vendors and high capital costs.

3.4 Exit of an existing competitor

L&A states that separate Australian patent litigation and pre-action demands resulted in Australian L&Aser hardware being collected for destruction and L&A withdrawing from Australian commercialization, without a final Australian merits determination identified by L&A. Patent enforcement is not alleged to be unlawful merely because it excludes a rival. The ACCC is asked to examine whether other conduct—misleading safety claims, communications or arrangements within the adoption network—reinforced or anticipated that foreclosure and whether Australian growers lost the ability to compare competing products on their merits.

4. Competition theory for assessment

Not a legal conclusion: The following identifies possible analytical lenses for the ACCC. Whether the facts satisfy any statutory element—including trade or commerce, market definition, market power, concerted action or substantial lessening of competition—is for the ACCC and courts, not L&A, to determine.

- **Potential market.** The supply, demonstration, evaluation and adoption of physical/energy-based precision weed-control technology to Australian vegetable and onion growers, with possible broader horticulture applications. L&A does not insist on this market definition.

- **Misleading or deceptive conduct.** If the catastrophic safety representation was made in trade or commerce without reasonable technical basis, the ACCC should assess Australian Consumer Law s 18 and any other applicable provisions.
- **Concerted practices or arrangements.** L&A does not currently possess evidence of coordination between Western Growers, Carbon or project participants. The ACCC should examine communications if the allegation, differential treatment and timing justify inquiry under Part IV, including s 45.
- **Market power / foreclosure.** If a supplier or network participant has substantial market power or effective control of a critical adoption gateway, the ACCC should assess whether conduct had the purpose, effect or likely effect of substantially lessening competition, including under s 46 where its elements are met.
- **Publicly supported gatekeeper effect.** Official affiliation can make private representations more credible and exclusions more consequential. Selection into MT25014 may function as a quality signal, while omission may deter growers even if the underlying criterion is opaque.
- **Cumulative effect.** The relevant question may be the combined effect of safety disparagement, preferential promotion, institutional access, litigation-driven exit and the absence of transparent neutral evaluation—not any single fact in isolation.

5. Harm to Australian competition and growers

- Loss of an existing differentiated laser-weeding competitor and reduced price/architecture competition.
- Fewer independently testable options for growers facing herbicide resistance, chemical withdrawal, labor constraints and high weeding costs.
- Potential chilling of overseas manufacturers that may view Australian entry as dependent on approval by an intermediary aligned with selected incumbents.
- Distorted investment decisions if catastrophic safety claims circulate without technical substantiation or a correction mechanism.
- Risk that levy-funded “independent validation” legitimises an already narrowed supplier set, making market exclusion self-reinforcing.
- Higher long-run equipment/service prices and slower development of alternative wavelength, dose, treatment and platform architectures.

6. Evidence the ACCC could obtain

1. Witness accounts and contemporaneous messages concerning the Gatton statement and any purchase/trial decisions it affected.
2. Communications between Western Growers, Carbon Robotics, DPI, Hort Innovation, Reservoir Farms, AUSVEG and event organisers referring to L&A/L&Aser, safety, patents, litigation, candidate selection or vendor suitability.

3. Western Growers' brief, funding, deliverables and decision rights for Gatton-related programs and MT25014.
4. MT25014 tender responses, shortlist, technology pipeline, scoring, conflicts, recusals, trial protocols and reasons for including/excluding vendors.
5. Any technical report or safety assessment relied on for the Gatton representation.
6. Evidence of whether growers, integrators or institutions changed decisions after receiving the statement or other warnings.
7. Patent litigation and pre-action documents only to the extent necessary to understand market effects, communications and timing; no request is made to decide patent merits.

7. Questions for investigation

1. Was the Gatton safety representation made, in what capacity, to whom, and with what technical basis?
2. Did the speaker or Western Growers communicate with Carbon Robotics about L&A/L&Aser before or after the statement?
3. Did any project participant advise growers, integrators, Hort Innovation or DPI not to trial, purchase, distribute or associate with L&Aser?
4. What role does Western Growers have in identifying or filtering global manufacturers for Australian programs?
5. Were candidate vendors treated according to equivalent safety, commercial-readiness and IP criteria?
6. What actual or potential vendor relationships were disclosed and managed?
7. Did any understanding, practice or coordinated communication have the purpose, effect or likely effect of limiting L&A's access to Australian growers or validation channels?
8. What was the actual market effect—lost trials, lost sales, exit, higher prices, or reduced technology diversity?
9. Can MT25014 still provide independent comparison if an already fielded competitor is absent for reasons unrelated to measured agronomic or safety performance?

8. Requested ACCC treatment

1. Record this as a small-business report concerning potentially misleading and anti-competitive conduct, not merely a bilateral patent dispute.
2. Contact L&A for witness identities and complete supporting records under appropriate confidentiality arrangements.
3. Assess whether compulsory information-gathering or liaison with DAFF/Queensland authorities is warranted.
4. Consider the broader systemic issue of vendor-neutrality where publicly supported industry intermediaries influence access to nascent AgTech validation and adoption channels.

5. Preserve the reporter's confidentiality to the extent permitted, particularly for witnesses and commercially sensitive/legal material, and consult before onward disclosure where practicable.

9. Accuracy and limitations

The reporter distinguishes public facts, first-hand or witness evidence, and inferences. L&A does not allege that the Sacramento photograph was staged to target L&A; that Western Growers' Carbon case study is improper by itself; that patent enforcement is inherently anti-competitive; or that coordination is proven. The report asks the ACCC to test a pattern whose critical communications and institutional records are outside L&A's control. L&A will correct any factual error demonstrated by reliable evidence.

Evidence schedule

The following items should accompany or follow the submission. Items marked "available from complainant" are not represented here as independently verified public facts.

Item	Evidence	Status / purpose
E1	Direct witness statements identifying who heard the Gatton safety representation, the exact words used, date, place and subsequent commercial effect.	Available from complainant; obtain signed, uncoached statements.
E2	Contemporaneous emails/messages with Hort Innovation, DPI, event organisers, growers or integrators following the Gatton incident.	Available from complainant; attach complete threads with metadata.
E3	Gatton exhibitor records, photographs and program materials showing L&Aser participation on 15–16 October 2025.	Public materials plus complainant records.
E4	AUSVEG podcast recording and timestamped transcript of Western Growers' statements regarding laser-weeding competition and Carbon Robotics.	Public recording; preserve locally.
E5	Western Growers' Carbon Robotics case study and related public promotional material.	Public source; relevance is relationship/context, not wrongdoing by itself.
E6	MT25014 tender, contract/scope, partner roles, candidate-selection criteria, conflict declarations, protocols and records.	Requested from Hort Innovation/DPI; core institutional evidence.
E7	Australian patent-litigation originating process, pre-	Available from complainant;

	action demands, evidence regarding collection/disposition of L&Aser modules, and proof of market withdrawal.	confidential legal review recommended before filing publicly.
E8	Western Growers announcement and Queensland Government release concerning the five-year California–Queensland framework.	Public source; screenshot attached as Annexure A.
E9	Grower communications showing independent market perception and any changed purchase/trial decisions.	Available from complainant; obtain consent and redact personal data unless needed.

Public sources

Accessed 2 September 2026. Hyperlinks are provided for verification; the attached image is reproduced separately as an annexure.

1. Queensland Government, "International collaboration signals new weapons in the war on weeds" (27 Aug 2026)
2. Queensland Government, "Trade Mission secures primary industries innovation agreement with Californian Government" (2 Sep 2026)
3. Queensland DPI, Gatton Smart Farm – programs and partners, including MT25014 and Western Growers
4. AUSVEG, "Gatton AgTech Showcase judged a success" (9 Dec 2025)
5. AUSVEG, 2025 Gatton Showcase announcement and stated purpose
6. Hort Innovation tender advertisement, MT25014 – independent benchmarking and objective comparison
7. ACCC, Competition and anti-competitive behaviour
8. ACCC, report an issue affecting a business or franchise
9. Federal Register of Legislation, Competition and Consumer Act 2010 (current)
10. Western Growers, Innovation Case Studies – Carbon Robotics case study
11. AUSVEG Vegalogue, "R&D: Part 2 Farming automation and technology" – Western Growers discussion (17 Aug 2026)

Annexure A – Western Growers announcement

Screenshot supplied by the complainant. It records Western Growers' public statement that its Senior Commercialization Director joined the Queensland Premier at the Sacramento signing ceremony for a five-year California–Queensland framework on agricultural innovation, biotechnology and productivity.

